

Ohio Intestate Succession

Descent of real property · Ohio Revised Code § 2105.06

How Ohio descent works

Ohio Revised Code § 2105.06 governs who inherits when a person dies without a will. Real property descends in parcenary, meaning the heirs take it as tenants in common in the shares set by the statute. The surviving spouse's share depends on whether children survive and whether those children are also the spouse's. A money amount comes off the top of the estate for the spouse before the fractional split, and that preferential can raise the spouse's real property fraction when the land is the main asset. This guide is written for mineral and surface title work, so it leads with the real property result and keeps the dollar figures in the notes. The current framework applies to deaths on or after March 22, 2001; earlier deaths follow the prior versions in the table below, and very old chains can involve dower and ancestral property.

Surviving spouse and children · real property, current law

Situation	Who takes the real property
No children or their lineal descendants	All of the real property to the surviving spouse. (§ 2105.06(E))
Children, all of whom are also the surviving spouse's	All of the real property to the surviving spouse. (§ 2105.06(B))
One child, who is not the surviving spouse's	The surviving spouse and the child hold as tenants in common. The spouse takes the first \$20,000 of the estate plus one-half of the balance; the child takes the rest. In land, the spouse's share is one-half or more. (§ 2105.06(C))
Two or more children, the spouse is the parent of at least one but not all	The spouse takes the first \$60,000 plus one-third of the balance; the children share the rest equally, per stirpes. In land, the spouse's share is one-third or more. (§ 2105.06(D))
Two or more children, the spouse is the parent of none	The spouse takes the first \$20,000 plus one-third of the balance; the children share the rest equally, per stirpes. In land, the spouse's share is one-third or more. (§ 2105.06(D))

No surviving spouse · or the share that does not pass to the spouse

Survivors	Who takes the real property
Children or their lineal descendants	Equal shares to the children, with a deceased child's share passing to that child's lineal descendants, per stirpes. (§ 2105.06(A))
No children; parents	Equally to the parents, or all to the surviving parent. (§ 2105.06(F))
No children or parents; siblings	To the brothers and sisters, of the whole or the half blood, or their lineal descendants, per stirpes. (§ 2105.06(G))
No siblings; grandparents	One-half to the paternal grandparents or their survivor, one-half to the maternal grandparents or their survivor. (§ 2105.06(H))

Survivors	Who takes the real property
No grandparents; their descendants	To the lineal descendants of the grandparents, per stirpes; if there are none on one side, the whole passes to the other side. (§ 2105.06(I))
None of the above; next of kin	To the next of kin of the intestate, with no representation among them. (§ 2105.06(I))
No next of kin; stepchildren	To the stepchildren or their lineal descendants, per stirpes. (§ 2105.06(J))
No stepchildren	Escheats to the State of Ohio. (§ 2105.06(K))

How the rule changed over time · for old chains of title

The surviving spouse's share has changed several times. For a death in an earlier period, use the rule in force on the date of death.

Date of death	Surviving spouse's share when children survive
3/4/1865 to 12/31/1931	No children, all to the spouse. With children, the land passed to the children subject to the surviving spouse's dower, a life interest. Property inherited from an ancestor (ancestral property) could descend along that bloodline under separate rules.
1/19/1932 to 12/31/1975	No children, three-fourths to the spouse and one-fourth to the parents, or all to the spouse if no parents. One child, one-half to the spouse and one-half to the child. Two or more children, one-third to the spouse and two-thirds to the children.
1/1/1976 to 12/16/1986	Preferential of \$30,000 if the spouse is the parent of the children, or \$10,000 if not, plus one-half of the balance with one child, or one-third with two or more.
12/17/1986 to 3/21/2001	Preferential of \$60,000 if the spouse is the parent, or \$20,000 if not, plus one-half of the balance with one child, or one-third with two or more.
3/22/2001 to present	All to the spouse if every child is also the spouse's. Otherwise the preferential is \$20,000, or \$60,000 where the spouse is the parent of one but not all of two or more children, plus one-half of the balance with one child, or one-third with two or more.

Notes for mineral and surface title work

Topic	Note
The money preferential and the land	The \$20,000 or \$60,000 is a money amount taken off the top of the whole estate before the fractional split. When minerals or surface are the main asset, satisfying that amount raises the surviving spouse's real property fraction above the bare one-half or one-third. Exact fractions can require the estate values or a probate determination, so treat the fractions here as the floor of the spouse's interest.
Descent in parcenary	Heirs take the real property as tenants in common, each holding an undivided fractional interest. Every heir has to be shown in the chain.

Topic	Note
Certificate of transfer	Ohio probate confirms the heirs and passes the decedent's real property by a certificate of transfer, which is recorded in the county where the land lies. It is the usual instrument that carries an intestate mineral or surface interest in the record.
Ancestral property (historical)	Before the 1930s reforms, real property inherited from an ancestor could descend to keep it in that ancestor's bloodline. Watch for it in very old chains.
Dower (historical)	Before 1932 a surviving spouse commonly took dower, a life estate in a fraction of the land, rather than a fee share. Ohio dower was later abolished. Old deeds and releases of dower still appear in the record.
Half blood and per stirpes	Siblings of the half blood inherit equally with those of the whole blood. A predeceased heir's share drops to that heir's lineal descendants by representation.

This reference is prepared for use by landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified Ohio oil and gas counsel. Ohio intestate distributions turn on the date of death, the size and makeup of the estate, and facts such as prior marriages, ancestral property, and predeceased heirs, and this guide focuses on real property rather than the full personal property distribution. Complex or disputed heirship should be referred to a licensed Ohio attorney. Citations are to Ohio Revised Code § 2105.06; verify against the current statute.